

Court No. - 3

Case :- WRIT - C No. - 15163 of 2017

Petitioner :- Aas Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Put up tomorrow i.e. 13.4.2017 as fresh.

Order Date :- 12.4.2017

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Court No. - 3

Case :- WRIT - C No. - 15163 of 2017

Petitioner :- Aas Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

The dispute is as to whether after having made an application for permanent disconnection and the respondents having removed the cable and meter, the petitioner is still under an obligation to make payment of the bill being raised though there has been no supply of electrical energy. The other point in issue is in respect of payment of charges for consumption of electricity from 2012 - 2014 in respect of which the petitioner himself admits that he has paid only a sum of Rs.42,000/-.

Sri Awadesh Kumar Saxena, learned counsel for the respondent no. 3 may file counter affidavit within six weeks.

Rejoinder affidavit may be filed within two weeks thereafter.

List immediately after expiry of the aforesaid period.

Considering the facts, on deposit of Rs.2.25 Lac by the petitioner with the respondent no. 3 within two weeks from today, recovery proceedings in pursuance of the impugned recovery citation dated 24.11.2016, annexure-1 to the writ petition, shall remain stayed.

In case of default, this order shall stand automatically vacated.

Order Date :- 13.4.2017

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Court No. - 35

Case :- WRIT - C No. - 15163 of 2017

Petitioner :- Aas Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.,Awadhesh Saxena

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

Rejoinder affidavit filed by the learned counsel for the petitioner is taken on record.

Counter affidavit has been filed by the learned counsel for the respondents on 06.9.2017 but the same is not on record.

Office is directed to trace out and place the same on record.

List thereafter.

Order Date :- 8.11.2017

Ruchi Agrahari

Court No. - 1

Case :- WRIT - C No. - 15163 of 2017

Petitioner :- Aas Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.,Awadhesh Saxena

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

As prayed, list in the next cause list.

Order Date :- 19.12.2017

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(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 40

Case :- WRIT - C No. - 15163 of 2017

Petitioner :- Aas Mohammad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shyam Murari Upadhyay

Counsel for Respondent :- C.S.C.,Awadhesh Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and Sri Abhijeet Saxena for the respondents.

The petitioner had come up against the recovery citation challenging the dues of electricity that was sought to be recovered. A Division Bench of this Court on 13 April 2017 passed the following order:-

"The dispute is as to whether after having made an application for permanent disconnection and the respondents having removed the cable and meter, the petitioner is still under an obligation to make payment of the bill being raised though there has been no supply of electrical energy. The other point in issue is in respect of payment of charges for consumption of electricity from 2012 - 2014 in respect of which the petitioner himself admits that he has paid only a sum of Rs.42,000/-.

Sri Awadesh Kumar Saxena, learned counsel for the respondent no. 3 may file counter affidavit within six weeks.

Rejoinder affidavit may be filed within two weeks thereafter.

List immediately after expiry of the aforesaid period.

Considering the facts, on deposit of Rs.2.25 Lac by the petitioner with the respondent no. 3 within two weeks from today, recovery proceedings in pursuance of the impugned recovery citation dated 24.11.2016, annexure-1 to the writ petition, shall remain stayed.

In case of default, this order shall stand automatically vacated."

It is the admitted case of the petitioner that he has not complied with the said direction. In such circumstances, there is no occasion for this Court now to extend any relief in exercise of discretionary jurisdiction under Article 226 of the Constitution of India.

The respondents have filed a counter affidavit to which a rejoinder affidavit has also been filed.

From the facts on record, we are unable to find out any illegal infirmity in the proceedings undertaken.

Learned counsel submits that the petitioner has moved an application for permanent dis-connection and the same has been pending without any order, and as such future liabilities can not be realized from the petitioner.

This issue as to whether the petitioner has bonafidely moved the application or not would be dependent on the deposits which are required to be made for seeking permanent dis-connection. The question of permanent electricity dis-connection does not arise without the payment of the dues which the respondent- Electricity Department is entitled to recover from the petitioner.

We have considered the said aspect also, keeping in view the Division Bench observations in an interim order dated 13 June 2002 in Writ Petition No.- 23728 of 2002. The same is not a final decision so as to construe it to be a precedent, and is an order that was passed on the facts of that case.

We are, therefore, not inclined to further keep this matter pending without prejudice to the rights of the petitioner to move before the Executive Engineer in terms of the Clause 6.14 of the Electricity Supply Code, 2005 for fixing of any easy installments as prayed for by the learned counsel for the petitioner. In the event, such an application is moved, it shall be open to the Executive Engineer to pass an appropriate order thereon.

The writ petition is accordingly consigned to records.

Order Date :- 14.5.2018

A. V. Singh